

Electronic Mail Journal Archive — Search Results Index

Requested by: G. Sallenave, Office of the General Counsel; C. Ostrowski, Division of Enforcement

Sponsored by: H. Loh, Records Officer, Office of Records Management Services

Matter: In the Matter of Marchwood Asset Management LLC, AP File No. 3-21987

Search run: January 14, 2025

Run by: M. Ellenbogen, Office of Information Technology

1. Search parameters

Parameter	Value
Repository	Electronic mail journal archive (write-once), journal capture continuous since 2004
Retention status	Destruction suspended agency-wide September 2011; disposition instruction carried forward under the Capstone-based schedule for electronic mail
Custodian mailboxes	rosalind.achterberg, desmond.whitlatch, nathaniel.okuma, priya.raghunathan
Date range	January 1, 2011 – December 31, 2013
Scope	Full text of message bodies, headers and attachment contents
Terms	“Marchwood” OR “2011-0447” OR “0447” OR “0477” OR “0417” OR “801-64719” OR “Vasseur-Kyle” OR “Penhaligon”

2. Result counts

	Messages
Matched mailbox and date filters	241,700
Matched a search term	38
— the 2011 examination sequence	12
— dated October 2013	1
— unrelated (passing mention, or a transposed examination number)	25

The 25 unrelated hits match on 2011-0477, 2011-0417, 2010-0447 or Denver’s 2011-0447 (Braxton-Ferrer Advisors LLC), or mention the registrant in a scheduling or planning context.

3. The 2011 examination sequence, as recovered

#	Date	From	To	Subject	Attachments
1	Feb 7, 2011	R. Achterberg	A. Penhaligon	Notice and initial document request	Document request list
2	Mar 18, 2011	P. Raghunathan	D. Whitlatch, R. Achterberg	Preliminary custody analysis, direct fee-debit authority	Preliminary findings memorandum
3	Apr 20, 2011	R. Achterberg	A. Penhaligon	Deficiency letter	Deficiency letter, six items
4	Apr 26, 2011	W. Tirado	R. Achterberg	Request for extension of the response period	—
5	Apr 28, 2011	R. Achterberg	W. Tirado	Extension granted to June 3	—
6	May 19, 2011	M. Vasseur-Kyle	D. Whitlatch	Interim response, Items 1, 2, 3, 5 and 6	Interim response
7	May 24, 2011	D. Whitlatch	M. Vasseur-Kyle	Staff position on Item 4	—
8	May 26, 2011	D. Whitlatch	R. Achterberg, N. Okuma	What the staff should ask for on Item 4	—
9	Jun 1, 2011	D. Whitlatch	R. Achterberg, N. Okuma	Call memorandum, Item 4 discussion	Call memorandum
10	Jun 2, 2011	M. Vasseur-Kyle	D. Whitlatch	Item 4 — corrective action and undertaking	Signed undertaking letter
11	Jun 7, 2011	D. Whitlatch	R. Achterberg, N. Okuma	Closing recommendation, disposition C-4	—
12	Jun 28, 2011	R. Achterberg	A. Penhaligon	Closing letter	Closing letter

4. The October 2013 message

#	Date	From	To	Subject	Attachments
13	Oct 21, 2013	M. Vasseur-Kyle	R. Achterberg	Application of the 2011 undertaking to the Hollis Grange accounts	Account transfer memoran- dum

5. Authentication

Each message is exported from the journal archive in native form with its original internet headers and its `Received:` chain intact. A separate journal copy exists for each Commission recipient of a message; those copies are byte-identical in body and attachment content and differ, as they must, in their `Received:` chains. Hashes of each exported item are recorded in the accompanying manifest.

No message in this result set has been modified since capture. The journal is write-once at the storage layer and there is no interface, administrative or otherwise, by which a journaled item can be altered in place.

M. Ellenbogen

Office of Information Technology — eDiscovery Services